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Provision of March 7, 2024

Register of provisions

no. 137 of March 7, 2024

## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Counsel Fabio Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the complaint filed by Ms. XX, pursuant to Article 77 of the Regulation, alleging a violation of the rules regarding the protection of personal data by Banca di Credito Cooperativo Appulo Lucana cooperative society (previously Banca di Credito Cooperativa di Spinazzola);

HAVING REGARD TO the observations made by the secretary general pursuant to Article 15 of the Guarantor's regulation no. 1/2000;

REPORTING Attorney Guido Scorza;

## PREMISE

1. Preliminary investigation.

With the complaint submitted to this Authority on 12/19/2020, regularized on 11/10/2021, Ms. XX represented that she had submitted a request for the exercise of rights, pursuant to Article 15 of the Regulation, against Banca di Credito

Cooperativa di Spinazzola (now Banca di Credito Cooperativo Appulo Lucana cooperative society following merger, hereinafter "the Bank"), where she had been employed, and that she had received an inadequate response.

The request, in particular, aimed to obtain

"access to the personal data contained in her

personal file, a copy of the same, and

specifically to the data contained in the file of the

disciplinary procedure (...) to know, in

a precise and detailed manner, all the information that

concerns her (evaluative and non-evaluative data) regarding the facts and behaviors (...) that led to the disciplinary sanction imposed by the Bank"

(request of 10/07/2020).

The complainant alleged that the response provided

by the Bank, on 11/03/2020, was inadequate, as it consisted of a "communication and listing, which was not complete, of only

the correspondence exchanged between the parties regarding the

aforementioned disciplinary procedure” lacking further information based on which the disciplinary sanction had been imposed.

In relation to the complaint, the Office invited the Bank to provide observations regarding what was represented, to clarify whether all the data contained in the personal file of the complainant, and in particular the acts related to the disciplinary procedure, had already been communicated to the applicant and, if not, to provide a copy (note of 04/29/2022).

In a communication dated 05/17/2022, the Bank represented, preliminarily, that it had given immediate feedback to the request for the exercise of rights made by the complainant “providing a wide array of information regarding the processing of her personal data, through documentation related to the disciplinary procedure against her”, believing, in this way, to have allowed her to know the reasons behind the procedure

and the evaluations conducted.

With the same note, the Bank proceeded to transmit further documentation, related to the disciplinary procedure, “in which personal data not related to her person were appropriately rendered illegible, pursuant to Article 15, paragraph 4, of the GDPR”.

## 2. Initiation of the procedure.

After examining the received documents, the Office proceeded to notify the Bank of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 12, paragraphs 3 and 4, and 15 of the Regulation (note of 09/07/2022).

The Bank, on 10/06/2022, sent its defense writings, pursuant to Article 18 of Law No.

689/1981, reiterating, preliminarily, its conviction regarding the exhaustive and timely response to the complainant's request.

The Bank argued that:

- “the documentation provided (...) in response to the first request made on 10/09/2020 allowed, (...) to ‘know all the information that concerned her regarding the facts and behaviors deemed irregular that led to the disciplinary sanction’ regarding the facts underlying the disciplinary procedure, the evaluations made, the underlying reasons that led to the dismissal”;
- “the complainant, ultimately, complained that nothing from the credit institution was attached regarding the correspondence exchanged with (omitted), that is regarding a subject quite different from that related to the original request”;
- “the disclosure, initially refused by this Bank, of the correspondence that took place between the Bank

and (omitted) could have harmed not only the confidentiality of the latter but also its rights in judicial proceedings (...);

- "At the same time, it should be emphasized that the corresponding right of defense in the disciplinary proceeding concerning the (complainant) finds no reason to be protected through access to information," as it occurred at a time when the disciplinary proceeding could no longer be challenged;

- "From the above, it follows the natural, reasonable, and full conviction of having complied exactly with the request and therefore in accordance with the current regulations (...). It can be inferred that the writing Bank believes it has acted correctly and consistently, also regarding its decision not to provide the further communication referred to in par. 4, of art. 12 of the Regulation, the omission of which is also contested here and which, instead, (...) cannot be invoked. This is because the norm (which provides for the obligation to communicate the reasons for the lack of response and the timely notice on the protections available) assumes a supplementary operational role subordinate to the lack of response within the deadlines set by art. 12, par. 3, of the Regulation";

From another perspective, the Bank observed that:

- "The right of access should concern personal data as well as the information provided for in par. 1 of art. 15 and, at least as a rule, not the documents that contain them, nor the documents containing information related to third parties and can (rather must) be limited to protect the rights and freedoms of others, such as the right of defense of the data controller bank";

- "On this occasion, it seems that the general right of access under art. 15 of the GDPR cannot be used by the worker to obtain a benefit that the same cannot request based on the relevant sector regulations, such as labor law (...)."

Finally, the Bank communicated, on 24/01/2024, its decision to waive the hearing initially requested "considering that there are no further elements and arguments to bring to attention, beyond what has already been stated in the defense briefs."

### 3. The outcome of the investigation.

Following the examination of the documentation produced and the statements made by the party during the proceedings, it is noted that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under art. 168 of the Code. It has emerged that the Bank, in response to the request to exercise rights made by the complainant on 07/10/2020, provided a partial response and, only following the initiation of the investigation by the Authority, delivered the additional documentation contained in the complainant's personal file.

Preliminarily, it is highlighted that the Banca di Credito Cooperativa di Spinazzola, where the complainant was employed and against which the request to exercise rights under art. 15 of the Regulation was directed, was dissolved following a merger, through incorporation, into Banca di Credito Cooperativo Appulo Lucana cooperative society on 06/05/2022 and that, therefore, based on what is provided for by art. 2504-bis of the Civil Code and the "Prescriptions regarding merger and demerger operations between companies" adopted by the Authority on 08/04/2009 (available on the website doc. no. 1609999), this provision is adopted against the incorporating company that takes over the active and passive relationships of the incorporated company.

That said, with reference to the arguments put forward by the Bank in the aforementioned defense briefs, it is noted that the Authority, having examined the complaint and the requests underlying it, invited the Bank to clarify whether it had further data and information related to the complainant (specifically concerning the disciplinary proceeding initiated against her) that had not already been delivered, inviting it, if necessary, to provide (note of 29/04/2022).

In response to the invitation to comply, the Bank proceeded to transmit supplementary documentation, consisting of correspondence between the Bank itself and a third party, which, based on what emerged from the investigation carried out as well as the statements of the Bank itself, constituted an integral part of the acts underlying the disciplinary proceeding (see, in this regard, the Bank's response of 17/05/2022 in which it stated: "the following supplementary documentation related to the disciplinary proceeding against you is attached (...)").

This particularly involved the correspondence maintained by the Bank with a third party who

complained about the unlawful communication of confidential information of a customer (the complainant's brother) and used by the complainant in the context of a judicial proceeding. The Bank, in its notes of response to this Authority, justified the initial failure to disclose such documentation due to the implications it would have on the right of defense and the protection of the third party's confidentiality.

However, it does not appear that such reasons were made known to the complainant, to whom only the supplementary documentation was omitted and it was indicated "the lack of interest in access both because the employment relationship ceased back in 2014 and because the disciplinary sanction issued (...) was not challenged within the terms" (see note of 03/11/2020 in response to the access request).

In light of the above, the conduct of the Bank was deemed non-compliant with the provision of art. 12, par. 4, of the Regulation, having failed to disclose the reasons for the lack of delivery of the additional documentation, despite being subject to a specific request.

Regarding the needs underlying the access request made by the claimant, some observations are necessary.

In general, it is noted that the right of access aims to allow the interested party to have control over their personal data and, in particular, to "be aware of the processing and verify its lawfulness" (see Cons.63); however, this does not imply that such a right should be denied or limited when the request is based on the pursuit of a different objective.

Indeed, from the reading of the combined provisions of Articles 12 and 15 of the Regulation, it does not appear that interested parties are required to indicate a reason or a specific need to justify their requests to exercise their rights, nor is the data controller recognized the possibility of asking for the reasons behind the request.

This interpretation has also been clarified by the EDPB through the approval of the Guidelines on the right of access (see, in particular, point 2.1 where it states that "data controllers should not assess 'why' the data subject requests access, but only 'what' the data subject requests (see section 3 on request analysis) and whether they hold personal data relating to that person (see section 4). Therefore, for example, the data controller should not deny access for reasons or suspicion that the requested data may be used by the data subject to defend themselves in court in the event of dismissal or a commercial dispute with the data controller) and is the result of a consistent jurisprudential orientation of the Court of Justice (see, most recently, the judgment C307/22).

Therefore, given that the claimant's request to access all data and information contained in their personal file related to the disciplinary procedure concerning them is lawful, it is noted that its fulfillment could not be conditioned upon the occurrence of certain conditions or the pursuit of specific objectives, among which are not provided by the legislator.

The ruling of the Civil Cassation, cited by the party in their defense briefs, according to which the employer is not obliged to make available to the worker the company documentation related to the facts underlying a disciplinary procedure, pertains to a different situation that is not comparable to the one at hand.

This ruling, in fact, refers to the particular situation in which the request is made by the worker within the disciplinary procedure referred to in Article 7 of Law No. 300/1970. Conversely, the merits jurisprudence has reiterated on several occasions that the right of access derives, in addition to the regulations on personal data protection, from "the respect of the principles of good faith and fairness that burden the parties in the employment relationship pursuant to Articles 1175 and 1375 of the Civil Code, as is confirmed by the fact that, for some time, collective bargaining in the sector in question provides that the employer must keep, in a specific personal file, all acts and documents, produced by the entity or by the employee themselves, that pertain to the professional path, the activities performed, and the most significant facts concerning them, and that the employee has the right to freely view the acts and documents included in their personal file" (Court of Cassation, April 7, 2016, No. 6775).

Consistent with this approach, the Authority, in its provisions, has often called upon data controllers to respond to requests from data subjects regarding requests related to the employment relationship and, therefore, concerning data and information contained in the personal file, even when it involves information related to disciplinary procedures (most recently, see provision No. 290 of 06/07/2023, web doc No. 9927300).

Lastly, regarding the format in which the data must be made available to the requester, namely, whether it is sufficient to provide the data and not also the documents in which they are contained, it should be noted that, pursuant to Article 12 of the Regulation, "The data controller shall take appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 and the communications referred to in Articles 15 to 22 relating to the processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language."

This provision, correctly interpreted, assigns to the data controller, within the framework of the principle of accountability, the task of identifying the most complete and satisfactory form in which to respond to access requests, in compliance with what is provided for in the aforementioned Article 12.

Also in this case, it is worth recalling the clarifications provided by the EDPB in the Guidelines on the right of access where, regarding this particular issue, it is specified that "The obligation to provide a copy should not be understood as a supplementary right of the data subject, but as a mode of access to the data" and that, therefore, "it does not aim to expand the scope of the right of access: it refers (only) to a copy of the personal data being processed, not necessarily to a reproduction of the original documents" (see section 2, point 23 of the Guidelines).

Thus, "making a sort of compilation and/or extraction of the data in order to make the information easy to understand could, in some cases, be a way to meet these requirements. In other cases, the information is better understood by providing a copy of the actual document containing the personal data. Therefore, the most suitable form must be decided on a case-by-case basis" (see point 153 of the Guidelines).

With respect to the case at hand, it is noted that the delivery of the documentation containing the personal data of the complainant underlying the disciplinary procedure was the only suitable means to allow access according to the aforementioned principles of correctness and transparency.

#### 4. Conclusions: unlawfulness of the processing carried out.

In light of the preceding evaluations, it is noted that the statements made by the data controller in the defensive writings - the truthfulness of which may be subject to accountability under Article 168 of the Code - do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to permit its archiving, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019, concerning internal procedures of the Authority with external relevance, apply.

For the aforementioned reasons, therefore, the complaint submitted pursuant to Article 77 of the Regulation is declared well-founded, and in exercising the corrective powers granted to the Authority pursuant to Article 58, paragraph 2, of the Regulation, an administrative pecuniary sanction is imposed pursuant to Article 83, paragraph 5, of the Regulation.

#### 5. Order of injunction.

The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an order of injunction (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data concerning the complainant, which has been found to be unlawful, as stated above.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, severity, and duration of the violation, the nature of the violation concerning the

provisions related to the exercise of the rights of the data subjects was considered relevant;

- the absence of previous relevant violations committed by the data controller;
- the circumstance that the data controller responded to the complainant's request during the procedure.

In consideration of the aforementioned principles of effectiveness, proportionality, and dissuasiveness (Article 83, paragraph 1, of the Regulation) to which the Authority must adhere in determining the amount of the sanction, the economic conditions of the offender have been taken into account, determined based on the revenues achieved and referred to the financial statements for the year 2022. Based on the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €20,000.00 (twenty thousand) for the violation of Articles 12, paragraphs 3 and 4, and 15 of the Regulation.

In this context, also considering the type of violation established, which concerned the rights of the data subject, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GARANTE

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out, in the terms stated in the motivation, for the violation of Articles 12, paragraphs 3 and 4, and 15 of the Regulation;

ORDERS

Banca di credito cooperativo Appulo Lucana, in the person of the legal representative pro tempore, with registered office in Spinazzola (BT), Corso Umberto I No. 65, VAT No. 00256810722, pursuant to Article 58, paragraph 2, letter i), of the Regulation, to pay the sum of €20,000.00 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

ORDERS

the same Company to pay the sum of €20,000.00 (twenty thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying - always according to the methods indicated in the attachment - an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011,

an appeal against this provision may be filed with the ordinary judicial authority, with an application submitted to the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, March 7, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei